BY ORDER OF THE COMMANDER FRANCIS E. WARREN AIR FORCE BASE

AIR FORCE INSTRUCTION 31-218

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MOTOR VEHICLE TRAFFIC SUPERVISION

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1-4.e.(8)(Added - FEW) The 90 MW/CC has delegated their authority under this instruction to the 90th Security Forces Group Commander (90 SFG/CC) and 90th Security Forces Group Deputy Commander (90 SFG/CD).

1-4.e.(8)(a)(Added - FEW) The 90 SFG/CC is the final authority for appeals. The 90 SFG/CD is the alternate.

1-4.h.(FEW) Traffic Safety Coordination Group (TSCG). The TSCG is responsible for traffic devices, traffic signs, pavement markings, parking areas and reserved parking areas. Requests for changes, deletions and additions will be submitted to them through Civil Engineering (CE). The TSCG will meet quarterly or at the call of the chairperson when a sufficient agenda has accumulated. The group will be composed of the 90th Civil Engineer Squadron Commander, 90th Missile Wing Safety, 90th Security Forces Squadron Operations Officer, the 90th Missile Wing Staff Judge Advocate, 90th Missile Wing Public Affairs and the 90th Security Forces Group Deputy Commander (90 SFG/CD) who chairs the group.

2-1.a.(4)(b)[1](Added - FEW) International driver's permits without a corresponding valid State driver's license will not be accepted for members who are visiting FEW TDY from their home country. Newly assigned military members who have an international driver's permit but no valid State driver's license will have 60 days to obtain a valid State driver's license.

2-1.a.(4)(c)(FEW) Personnel who knowingly furnish false or misleading information regarding the vehicle credentials are subject to driving revocation, base debarment and arrests by civil authorities. Military personnel are subject to driving revocation and disciplinary action under the UCMJ.

2-2.a.(2)(a)(Added - FEW) Procedures on stopping, inspecting, searching and impoundment are outlined in the Integrated Defense Plan, 31-1.

2-4.a.(1)(a)(Added - FEW) The driving privileges of any individual operating a vehicle on the installation may be suspended or revoked due to point accumulation or driver behavior. When the driving privileges of an individual are to be revoked, 90 SFS/S5R will prepare suspension or revocation packages as outlined in AFI 31-218, *Motor Vehicle Traffic Supervision* and this supplement. 90 SFS/S5R will then forward the suspension or revocation letter to the 90 SFG/CC for final determination and approval. The suspension will remain in effect for the entire period of the suspension unless the installation commander or his/her designee approves an appeal. Prior to reinstatement of driving privileges individuals are required to attend the Defensive Course V program through 90 MW/Safety.

2-4.a.(3)(b)[1](Added - FEW) Drivers under the age of 21 who are found to have a blood alcohol content below .08% but above legal limit for drivers under the age of 21 in Wyoming will also have his or her driving privileges suspended for no less than one year.

2-4.a.(4)(Added - FEW) 90 SFG/CC will produce and disseminate a list of traffic violations for which 90 SFS Patrols are authorized to issue pre-signed driving suspension letters on behalf of the 90 SFG/CC. An Air Force Justice Information System (AFJIS) report must accompany the driving suspension letter. The offender will be given the driving suspension letter and the suspension will immediately go into effect. The subject will sign the letter acknowledging their notification of suspension. If the subject refuses to sign the letter, the individual issuing the letter shall so state on the face of the letter. The SFS Patrol will escort the driver either to their on-base residence or off the installation.

2-10.d.(FEW) This can only be done for FEW imposed suspensions. Personnel requesting restricted privileges must submit a letter explaining the details, through their immediate commander and the 90 SFS/S5R section, to the 90 SFG/CC. The immediate commander must endorse the request for restricted driving privileges and provide comments supporting or not supporting the restricted driving privileges. The 90 SFG/CC shall determine if restricted driving privileges are appropriate. If restricted driving privileges are granted by the 90 SFG/CC, the person granted such restricted driving privileges must carry a copy of the authorization letter while operating a vehicle. Failure to do so will result in termination of restricted driving privileges.

2-13.a.(Added - FEW) Violators must successfully complete the approved 90 MW/Safety Course V, prior to reinstatement of their base driving privileges. The offender must report to 90 SFS/S5R with all class completion certificates and a letter from appropriate commander or section commander verifying completion of the driving suspension and all required classes prior to reinstatement. The offender’s suspension/revocation will automatically be extended until the completion of defensive driving course/treatment program/s.

3-1.a.(1)(FEW) Personnel are not required to register motor vehicles with the installation. All motor vehicles must meet all requirements of the State they are registered in and all Federal requirements.

3-1.b.(FEW) Construction and material handling vehicles, off-road motorcycles, mopeds©, off-road vehicles, or other two-, three-, four-wheeled vehicles powered by a motorcycle engine are not required to be registered on base. If the individual intends to operate the vehicle on the installation roadways, it must meet all state and federal guidelines for operation, and owners must register and license the vehicle with a state.

3-2.c.(FEW) Insurance requirements for operation of POVs within the confines of the installation are the minimum requirements set forth in the Wyoming Criminal and Motor Vehicle Laws, Chapter 31-4-130. The installation does not require periodic safety inspection for vehicles operated routinely on the installation; however, all vehicles must meet the minimum safety requirements for operation set by the state of Wyoming.

4-1.b.(FEW) The FEW TSCG addresses all traffic circulation issues when they arise.

Table 4-1.c.(Added - FEW) Posted Speed Limits for FEW. All speed limits listed in this table will be adhered to unless otherwise posted.

Location	Speed
Within housing area	15 MPH
All Parking Lots	5 MPH
Road Construction areas	15 MPH

4-2.a.(FEW) Traffic Code. FEW assimilates Title 31 of the Wyoming Criminal Law and Motor Vehicle Handbook as its traffic code. In circumstances where these directives are in conflict, the more stringent standard will have precedence.

4-2.a.(3)(Added - FEW) Basic Rules. A person operating a vehicle on FEW shall do so in a careful and prudent manner, and at or below the rate of speed posted or outlined in **Table 4.1.** The operator will take into account the conditions at the point of operation, such as amount of traffic, condition of brakes, weight of vehicle, grade and width of roadway, condition of surface, and freedom of obstruction to view ahead and present weather conditions. An operator of a motor vehicle on FEW shall immediately and safely move the vehicle to the right side of the roadway or parking area and come to a complete stop when directed to do so by Security Forces members.

4-2.c.(1)(a)(FEW) Vehicle operators must yield to pedestrians attempting to enter or in crosswalks. Pedestrians must ensure oncoming vehicles have surrendered the right of way by coming to a complete stop prior to crossing a street at street corners or crosswalks. Crossing mid street other than at crosswalks is prohibited.

4-2.c.(1)(d)(Added - FEW) Motorcycles and mopeds. For motorcycles and other self– propelled, open, 2–wheel, 3–wheel, and 4–wheel vehicles powered by a motorcycle–type engine, the headlights will be on at all times when in operation. A rear view mirror will be attached to each side of the handlebars.

4-2.c.(1)(e)(Added - FEW) Unit commanders with motorcycle, moped, or motor scooter operators will ensure untrained operators (all military regardless of duty status and those civilian personnel that ride as a part of their duty) complete an approved motorcycle safety training course as required AFI 91-207, *The US Air Force Traffic Safety Program*. NOTE: Service members of other services must follow motorcycle training requirements of that service: Army, AR 385-55, USN, OPNAVINST 5100.12 (series), USMC, MCO 511.19 (series), USCG, COMDTINST M5100.5."

4-2.c.(1)(f)(Added - FEW) Untrained motorcycle riders (military and civilian) are prohibited from riding in traffic environments, unless authorized in writing by the unit commander. Commanders may authorize waivers to ride, pending training attendance, in 30-day increments.

4-2.c.(1)(g)(Added - FEW) Military personnel must have proof of current training when operating a motorcycle on the installation. Civilian personnel who operate motorcycles, motor scooters or mopeds while on duty must retain and present proof of completion upon request. Any Motorcycle Safety Foundation (MSF) or approved training completion course card/certificate serves as course completion.

4-2.c.(1)(h)(Added - FEW) Unit commanders will require military personnel to complete an approved DoD intermediate or refresher motorcycle safety training course for any of the below reasons if the operator: (1) has not operated a motorcycle, moped, or motor scooter for 2 or more years, (2) reportable mishaps, (3) reports of near-misses, (4) validated complaints regarding operator's bad driving habits, (5) other indications that an operator is at personal risk for being involved in a vehicle mishap.

4-2.c.(1)(i)(Added - FEW) Owners of sport bikes are required to complete an approved sport bike focused training course. A Sport Bike Training Course Completion Card will be used as proof of training. When determining whether a motorcycle is a sport bike, the manufacturer's description, horsepower and torque will be used to aid in the classification. Refer to AFI 91-207, *The US Air Force Traffic Safety Program* for further information.

4-2.c.(1)(j)(Added - FEW) Commanders, supervisors and security forces will enforce the use of approved personal protective equipment (PPE), such as DOT approved helmet properly fastened under the chin, eye protection (goggles, shatter resistance glasses, face shield et al), sturdy over the ankle footwear, a long-sleeved shirt or jacket, long trousers, full fingered gloves or mittens made of leather or other abrasive resistant material will be worn by operators and passengers when in operation. Wearing of a motorcycle jacket and pants constructed of abrasion resistant materials such as leather, Kevlar and/or Cordura containing impact absorbing padding is strongly encouraged. PPE that incorporates fluorescent colors and retro- reflective material is strongly encouraged. Non-use of or use of non-compliant PPE may be considered in making Line of Duty (LOD) determinations for injuries. Traffic point assessment for noncompliance with riding apparel and equipment requirements is outlined in Table 5.2. The below requirements will be briefed at newcomer's orientation and included in the installation traffic code. Failure to comply with PPE requirements will result in denial of motorcycle operation on the installation until in compliance.

4-2.c.(1)(k)(Added - FEW) Moped or motor scooters will not be driven on sidewalks, troop walks, running tracks, or other areas designated for pedestrians.

4-2.c.(1)(l)(Added - FEW) When authorized on roadways, moped and motor scooters operators will travel with the flow of traffic and obey all traffic signs and signals.

4-2.c.(1)(m)(Added - FEW) Mopeds and motor scooters that have a top speed of 30mph, will only be used on roadways with a posted 35 mph speed limit or less.

4-2.c.(1)(n)(Added - FEW) Off-Road Vehicles. The use of Government Owned Recreational Motor Vehicles (GORMV) and Other Government Motor Vehicle Conveyances (OGMVC) are authorized on FEW for official business only. Off-road, privately owned, vehicles are only authorized to be operated on the installation streets if they are licensed and registered to drive on state roads.

4-2.c.(2)(d)(FEW) Child Interference. No vehicle may be operated while the driver is holding a child, or allowing a child to interfere in any way with the operation of a vehicle.

4-2.c.(2)(f)(Added - FEW) Quantity of Passengers. No vehicle will be operated with more passengers than there are safety restraints. This includes operating a vehicle with a person riding on an exterior portion of the vehicle or inside the bed of a truck, unless the person(s) is/are seated on the bed or platform of the vehicle or upon a seat built below the level of the sideboards with all body extremities inside the bed. Personnel are permitted to ride in the bed of a truck when all available seats are in use by other persons. While riding in the bed they will not lean against the tailgate. Restraints/seatbelts will be worn by all FEW vehicle occupants in government and privately owned vehicles both on base and off-base.

4-2.c.(3)(FEW) Violators can be cited for using a cell phone while driving without a hands- free device For AFJIS point assessment purposes, violations of this paragraph will fall under: Other moving violations (involving driver behavior only). See Table 5.2. point assessment(s).

4-2.c.(3)(a)(Added - FEW) Windshield Visibility. All vehicles must have a serviceable windshield. Vehicles shall not be operated with an iced, fogged, or excessively dirty windshield. The entire glass area of the vehicle will be free of any obstructions that might restrict the driver’s view.

4-2.c.(3)(b)(Added - FEW) Music Inside Vehicles. No person operating a vehicle within the confines of FEW shall allow the volume of the amplified sound to be heard for a distance of 50 feet from the source. Negative considerations will be if the noise is raucous, offensive, jarring, or vibration is deemed and/or reported as a disruption to good order and discipline by a person(s) in the area of audibility.

4-2.f.(1)(Added - FEW) Pedestrian’s Rights and Duties. Pedestrians are subject to the following rules:

4-2.f.(1)(a)(Added - FEW) When sidewalks are not provided, pedestrians should walk on the shoulder or roadway of on-coming traffic. Pedestrians and joggers may not wear headphones, except on the base jogging trails. Pedestrians must obey all traffic control devices and use designated crosswalks.

4-2.f.(1)(b)(Added - FEW) No person shall stand or park in the roadway for the purpose of soliciting transportation, employment or business from a vehicle. No solicitation is permitted without the prior approval from the installation commander.

4-2.f.(1)(c)(Added - FEW) Vehicle drivers will yield the right-of-way and stop, for pedestrians crossing the roadway within a crosswalk. No pedestrian will suddenly leave a curb or other place of safety and enter the path of a vehicle which is so close as to constitute an immediate hazard.

4-2.f.(1)(d)(Added - FEW) Obey all traffic control devices and use designated crosswalks. Take all safety precautions and ensure the vehicle(s) will stop prior to entering a crosswalk.

4-2.f.(1)(e)(Added - FEW) Jogging, running, fitness and walking on installation roadways is permitted on installation roadways as follows: If the established speed limit is 30 MPH or less. During hours of daylight brightly colored or highly contrasting outer garments will be worn. During hours of darkness or during hours of limited visibility and reflective material will be worn. Joggers, fitness walkers, etc., who run on roadways, will do so in single file and not two (or more) abreast. This applies to personnel at the head and rear of troop formations or unit fitness groups.

4-2.f.(2)(Added - FEW) Bicyclists: Bicyclists will comply with Wyoming Vehicle Code 31-5-701-706 and obey all traffic signs, signs and rules the same as a vehicle operator.

4-2.f.(2)(a)(Added - FEW) Whenever a person is riding a bicycle on a sidewalk, the person shall yield the right of way to pedestrians and shall give an audible signal before overtaking and passing pedestrians.

4-2.f.(2)(b)(Added - FEW) No person shall ride a bicycle on a sidewalk, within a business area (i.e. Base Exchange, Commissary, Shoppette, Dormitory, unit organizations, etc.)

4-2.f.(2)(c)(Added - FEW) Bicyclists must ride with the flow of traffic and wear reflective or high visibility outer garments when riding during periods of reduce visibility. Bicycle headlamps, rear lights and rear reflectors must meet state or host installation requirements for visibility during periods of reduced visibility. These requirements must be briefed during newcomers' local orientation and addressed in the installation traffic code.

4-2.f.(3)(Added - FEW) Non-powered scooters, skateboards, roller-skates, and Roller-Blades are authorized on sidewalks and jogging trails only. They shall not be operated on installation roadways.

4-2.f.(3)(a) (Added - FEW) All individuals who utilize bicycles, non-powered scooters and other recreational equipment on FEW shall properly wear an approved helmet. An approved helmet is defined as a helmet meeting the standards set by the CPSC, American National Standards Institute (ANSI), or Snell Memorial Foundation.

4-2.f.(3)(b)(Added - FEW) Powered scooters are not authorized for use on FEW.

4-2.f.(3)(d)(Added - FEW) Segway® Human Transporters and Similar Devices. These vehicles do not meet Federal Motor Vehicle Safety Standards (FMVSS) for public roadways and will not be used in traffic environments unless specifically authorized by the installation commander. Installation safety staffs, installation traffic engineers, and security forces will perform risk assessments to aid the installation commander in the decision-making process. Assessments will address personal protective equipment, training, inclement weather, roadways and time periods that apply to the operation of the motorized vehicle. When authorized, personnel must properly wear an approved ANSI, CPSC, or Snell Memorial Foundation helmet, as a minimum. Use of said devices is allowed as part of mission operations.

4-2.h.(Added - FEW) Limitations on Backing. The driver of a vehicle shall not back the vehicle unless such movement can be made with reasonable safety and without interfering with other traffic. The driver of a backing vehicle will yield the right-of-way to oncoming vehicles. Vehicles without a clear view to the rear should use a spotter while backing. Spotters must dismount from the interior to a position that can be easily observed by the vehicle operator. The spotter shares the responsibility in an accident/situation where their actions are clearly contributory to the accident. GOV operators will sound the horn before backing and use spotters when backing when passengers or riders are present.

4-2.i.(Added - FEW) Towing Vehicles on FEW. A vehicle towed upon a roadway must be towed by means of a tow bar or other rigid device. In addition to the tow bar or rigid device, safety chains, cable or equivalent device will be utilized to prevent the rigid connecting device or tow bar from dropping to the ground in the event of its failure. Requests for exceptions to this rule may be addressed to the Base Defense Operations Center (BDOC) and will only be granted based on emergency or other extenuating circumstances. 90 LRS/LGRV personnel with approved tow rope/strap IAW AFMAN 24-306 may tow GOVs.

4-2.j.(Added - FEW) Vehicle Maintenance. Emergency repairs may be made as needed, and other minor maintenance (for example fixing flat tires) may be conducted in authorized parking areas as long as there are no safety hazards and the work is completed within a reasonable time period. Major repairs (such as removing engines, transmissions and so forth) on POVs may not be conducted anywhere on FEW except in an authorized stall at the Auto Hobby Shop. Unattended vehicles may not be left elevated on jacks or similar equipment except those authorized repair areas indicated above. Oil and other automotive fluids will be properly disposed of and will not be allowed to drain on the roadway or ground. Trash receptacles will not be used to dispose of these fluids. Working on vehicles is not permitted in the Visitor Control Center parking lots.

4-5.a.(1)(Added - FEW) FEW will conduct a detailed investigation for accidents on the installation involving POVs, GOVs or other government property if there is a fatality, personal injury, or estimated property damage of $10,000 or more. Investigations of off–installation accidents involving GOVs will be accomplished with the assistance of the civilian law enforcement agency exercising jurisdiction.

4-5.a.(2)(Added - FEW) All incidents described in paragraph 4-5.a(1) are considered a major accident and require an AF Form 1315, Accident Report, be accomplished.

4-5.a.(3)(Added - FEW) A minor accident is any accident with no injuries and/or the damage to private and government property is under $10,000.

4-6.a.(1)(Added - FEW) Off-base accidents categorized as major will be reported to the 90 SFS BDOC. The BDOC will make notifications IAW current notification matrices.

4-6.a.(2)(Added - FEW) Security Forces will respond to minor on-base accidents, if manning and time permits. The response will be for documentation of information only and an investigation will not be conducted. However, citations may be issued for any violations if fault can be determined. A Minor Vehicle Accident Worksheet will be accomplished by the patrolman.

4-7.h.(Added - FEW) To obtain civilian police reports for military members involved in an incident off-base, a fax or e-mail requesting the report must be sent to the responsible police agency record's section by 90 SFS/S5R. For investigative government agencies and civilian police requesting 90 SFS reports, the report can be released upon fax request, e-mail or walk-in request after receiving concurrence from the DAF CJIC and the DAF FOIA, if applicable, IAW AFI 31-115.

4-8.c.(1)(Added - FEW) Parking Limitations. Parking on a seeded area is unauthorized. A seeded area is defined as an area where grass is growing, or an area where grass could be grown. Exceptions: Emergency response vehicles or GOV(s) responding to an emergency or when directed to do so by on-duty Security Forces personnel.

4-8. e. (2) (Added - FEW) Storage of Recreational vehicles: The only authorized storage area for recreational vehicles, campers, boats and trailers will be in the recreational vehicle storage lot. For access on FEW contact outdoor recreation at 307-773-2988. Recreational vehicles are prohibited to be stored or parked longer than one day in the housing area without impeding traffic on FEW.

4-9.b.(1)(a)(Added - FEW) When issuing a DD Form 1408, patrolmen will write, stamp or place a label on the back of the pink copy given to the violator with the following: "If you wish to rebut this citation report to Security Forces Reports & Analysis Office (S5R), Bldg 290, within 5 duty days. If you do not notify S5R of rebuttal request, it is assumed you do not wish to rebut the citation. Please notify your Commander or First Sergeant within 24 hours or next duty day".

4-9.b.(1)(b)(Added - FEW) Fix it tickets, DD form 1408 are only for safety or mechanical defects with a vehicle such as headlight or taillight out, broken turn signal, loud muffler etc. each violation must be written on a separate DD Form 1408. The operator who receives such a ticket has 3 business days to rectify the violation and report to S5R, Bldg 290 to show proof of compliance.

4-9.b.(1)(c)(Added - FEW) If the violator does not notify 90 SFS/S5R within five duty days with intention to rebut the citation, S5R will complete the administrative process by writing or stamping on the back of the white copy “did not rebut” and endorse the infractions on the DD Form 1408. Points will be assessed IAW Table 5.2. The violator is still required to report the citation to their unit. S5R will also notify violator’s unit of violation via email. NOTE: If offense requires suspension/revocation of installation driving privileges or the violator has excessive point accumulation, S5R will process the package accordingly. Upon approval/signature of 90 SFG/CC, the violator’s supervisor, first sergeant or commander will escort them to S5R for issuance of suspension letter. Non-affiliated civilians and dependents will receive letter via certified mail.

4-9.b.(1)(d)(Added - FEW) DD Form 1408, Voiding Procedures. Once a DD Form 1408 has been issued, only the issuing personnel may void it. The 90 SFS/CC may void for obvious administrative or legal errors when an inappropriate citation (violation) has been annotated. The issuing/voiding official will state, in writing, on the reverse of the white copy of the form the exact reason for voiding; and include their name, rank, date and signature. The voided form will then be forwarded to S5R.

4-9.b.(1)(e)(Added - FEW) DD Form 1408, Rebuttal Procedures. The violator must notify 90 SFS/S5R of request for rebuttal within 5 duty days of receipt of ticket. The violator must submit a rebuttal letter articulating his/her position to the 90 SFS/CC through S5R within 14-days of receipt of the ticket. The letter must be endorsed by his/her commander with comments supporting the violator‘s guilt or innocence.

4-9.b.(1)(f)(Added - FEW) S5R will obtain a written statement from the Security Forces patrolman who issued the ticket for inclusion in the rebuttal package. The completed package will be forwarded to the 90 SFS/CC for annotation/recommendation and subsequently to 90 SFG/CC for final decision. Once the 90 SFG/CC has made a decision, S5R will notify the violator of the final outcome of his/her ticket rebuttal in writing.

4-18.(FEW) Jurisdiction. FEW has exclusive jurisdiction. Local police departments will not respond to on-base incidents, except at the request of the installation commander or the 90 SFS/CC.

4-18.a.(FEW) Service members, contractors and DOD civilian employees will comply with WY State and local traffic laws when operating Government motor vehicles on and off FEW.

Table 5.1. (FEW) Suspension/Revocation Period.

Violation	Duration
Reckless driving (willful and wanton disregard for the safety of persons or property and/or 25 MPH over the posted speed limit.) 1st Offense: 3-month suspension 2nd Offense: 6-month suspension 3rd Offense: 1-year suspension	Varies
Leaving children 5 years old or younger unattended in a vehicle 1st Offense: N/A 2nd Offense: 3-month suspension 3rd Offense: 1 year suspension See Table 5.2 for point assessments	Varies
Expired state vehicle registration more than 30 days Note: Prior to reinstatement of privileges; operators must attend the 90 MW Safety's Defensive Driving Course; provide proof of completion and current registration to S5R	1-month
Failure to maintain minimum vehicle insurance requirements Note: Prior to reinstatement of privileges; operators must attend the 90 MW Safety's Defensive Driving Course; provide proof of completion and current registration to S5R	1-month
Operating vehicle with expired driver's license	1-month
3 Parking violations in 12-month period *each violation after 3rd offense will require 1 month suspension	1-month
3 Defective vehicle violations in 12-month period *each violation after 3rd offense will require 1 month suspension	1-month
Use of fraudulent or altered driver's license	6-months
Permitting an unlicensed driver to operate a vehicle	6-months
Driving While Impaired (BAC equal to or greater than 0.05g/ml but less than 0.08g/ml) *exception: 1 year Suspension for Zero Tolerance violation (under 21)	6-months
Driving While Impaired (Underage) (BAC equal to or greater than 0.02g/ml but less than 0.05g/ml) To be enforced with additional offenses (Underage)	1-year
12 Points in a 12-month period OR 18 Points in a 24-month period	1-year
Unlawful introduction of firearms or other dangerous weapons into controlled areas of a military reservation within a vehicle: Loaded or unloaded	1-year
Apprehension/detention/arrest for DUI	1-year
Implied Consent violations (Refusal to submit to or failure to complete chemical tests)	1-year

Perjury or making false affidavit or statement under oath to responsible officials or under law or regulations relating to the ownership or operations of a motor vehicle	1-year
Apprehension/detention/arrest for driving while installation or state privileges are suspended	2-years
Second apprehension/detention/arrest for DUI in a 5-year period.	2-years

Table 5-2. (FEW) Point Assessment for Moving and Non-MovingViolations (See Note 1).

Violation	Points
Failure of operator or occupants to use available restraint system devices while moving (operator assessed points) 1st Offense: 3 points 2nd Offense: 4 points 3rd Offense: 5 points	Varies
Failure to properly restrain children in a child restraint system while moving (when child is 4 years of age or younger or the weight of the child does not exceed 45 pounds). 1st Offense: 3 points 2nd Offense: 4 points 3rd Offense: 5 points	Varies
Leaving children 5 years old or younger unattended in a vehicle 1st Offense: 3 points 2nd Offense: 4 points 3rd Offense: 5 points See Table 5.1 for suspension/revocation periods	Varies
Other moving violations -involving driver behavior only (Utilizing cell phone without a hands-free device/texting while operating a vehicle) 1st Offense: 3 points 2nd Offense: 4 points 3rd Offense: 5 points *See additional suspension requirements in Table 5.1	Varies
Reckless driving (willful and wanton disregard for the safety of persons or property and/or 25 MPH over the posted speed limit. 15 MPH over in Housing Area or School Zone)	6
Owner knowingly and willfully permitting a physically impaired person to operate the owner's motor vehicle.	6
Fleeing the scene (hit and run)-property damage only.	6
Driving vehicle while impaired (blood-alcohol content more than 0.05 percent and less than 0.08 percent).	6
Open container violations	6
Speed contests.	6
Over 20 miles per hour above the posted speed limit.	6
Over 15 but not more than 20 miles per hour above the posted speed limit.	5
Over 10 but not more than 15 miles per hour above the posted speed limit.	4
Following too close.	4
Failure to yield the right of way to emergency vehicle.	4
Failure to stop for school bus or school-crossing signals.	4

Failure to obey traffic signals or traffic instructions of an enforcement officer or traffic warden; or any official regulatory traffic sign or device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic	4
Improper passing	4
Failure to yield (no official sign involved)	4
Improper turning movements (no official sign involved).	3
Failure to provide proof of vehicle registration, proof of insurance, or driver's license.	3
One to 10 miles per hour over the posted speed limit.	3
Wearing of headphones/earphones while driving motor vehicles (two or more wheels)	3
Failure to wear approved PPE (IAW AFI 91-207) while operating a motorcycle, MOPED, three- or four-wheel vehicle powered by a motorcycle-like engine.	3
Improper overtaking.	3
Operating a radar detection device to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations)	3
Littering *Moving and non-moving violation	3
Failure to yield to pedestrian in crosswalk.	3
Speed too fast for conditions.	2
Speed too slow causing potential safety hazard (impeding the flow of traffic)	2
Operating an unsafe vehicle (see note 2).	2
Failure to utilize headlights when required.	2
Driver involved in accident deemed responsible (only added to points assessed for specific violations).	1
Non- Moving Violations	
Unattended Child under 12 years of age left in vehicle. Animals are included if a danger exists to the animal.	6
Misuse of handicap decal.	3
Illegally parked in designated handicap area (no decal, license or placard displayed).	3
Unattended Vehicle (while running).	3
Abandoned Vehicle.	3
Illegally parked	1

NOTES:

1. When two or more violations are committed on a single occasion, points may be assessed for each individual violation.

2. Use this measure for other than minor vehicle safety defects or when a driver or registrant fails to correct a minor defect (for example, a burned out headlight not replaced within the grace period on a warning ticket).

6-2.(FEW) Impounded Vehicles. No person shall abandon a vehicle on FEW. Vehicles identified as abandoned will be processed by the 90th Security Forces Investigations section. A vehicle is normally considered abandoned if it is known that the legal owner has departed the base by the way of PCS orders, separation or retirement; the vehicle has expired or missing base/state registration and all attempts to identify the owner have met with negative results; if the owner doesn't respond; or if the vehicle otherwise appears to be abandoned.

6-2.c.(1)(e)(Added - FEW) Vehicles will be towed for being parked in a restricted or controlled area if their presence is a security hazard or has an adverse impact on mission requirements.

6-2.c.(1)(f)(Added - FEW) Vehicles illegally parked for more than 3-days may be towed.

6-2.c.(1)(g)(Added - FEW) Vehicles with an expired certificate of registration may be towed.

6-2.c.(1)(h)(Added - FEW) Vehicle with major parts removed so as to render the motor vehicle inoperable may be towed

6-2.c.(1)(i)(Added - FEW) Vehicles with the manufacturer's serial plates, motor vehicle identification numbers, license number plates and other means of identification have been removed so as to nullify efforts to locate or identify the registered and legal owner may be towed.

6-2.c.(1)(j)(Added - FEW) Vehicles where the registered and legal owner of record disclaims ownership or releases his rights thereto may be towed.

6-3.a.(FEW) Any vehicle towed due to being illegally parked will be towed at the owner’s expense. The tow company is responsible for inventorying vehicles content and any damage to the vehicle resulting from the tow. The tow company is also responsible for notifying the rightful owner of final disposition of the vehicle if not claimed within 30 days. If an owner claims the vehicle, the owner will be responsible for the towing and storage charges.

6-3.d.(Added - FEW) Civilian Law Enforcement and Vehicle Repossession agencies are authorized to enter the installation and impound or repossess vehicles, with prior coordination with 90 SFS and the Staff Judge Advocate.

6-4.a.(1) (FEW) Three days after the notice, the vehicle may be towed by a civilian tow truck service to their storage lot. A DD Form 2506, Vehicle Impoundment Report, will be accomplished. The tow truck driver will receive one copy. The other copy will be maintained on file, along with an NCIC rip of the vehicle’s license plate number and/or VIN number and a picture of the vehicle. These files will be maintained for at least one year from date of release to the tow truck company.

6-5.b.(1)(Added - FEW) Whenever a vehicle operated by a person subject to the UCMJ is on FEW and found to contain contraband such as a controlled substance, possession of which is punishable under the UCMJ, it shall be seized and impounded as evidence by Security Forces or AFOSI personnel. For this purpose, possession of contraband as defined in 49 U.S.C. 781 is considered punishable under Articles 92, 112a, or 134 of the UCMJ. Vehicles operated by persons not subject to the UCMJ may not be impounded pursuant to the regulation. Any such vehicle seized will be processed in accordance with local procedures established by the commander and released to civilian authorities.

6-5.b.(2)(Added - FEW) Immediately after the seizure, the vehicle and its contents shall be searched and/or inventoried by S2 or AFOSI and removed to a secure area. Personal property which is not contraband or evidence, or is not being used to facilitate the transportation of contraband, will be released after being inventoried and receipted for by the owner. All related reports and/or documentation will be accomplished by Security Forces or AFOSI personnel.

6-5.b.(3)(Added - FEW) Evidence. Vehicles seized and impounded for carrying contraband may only be properly retained in Air Force custody for evidentiary purposes. Release or continued retention of any vehicle seized for carrying contraband shall be determined by S2/AFOSI, Staff Judge Advocate, and the FBI.

6-5.b.(4)(Added - FEW) Forfeitures. Retention of any vehicle seized by the Air Force solely for federal forfeiture proceedings for carrying contraband articles is not authorized. However, if the appropriate conditions exist such vehicles may be “adopted” for certain federal agencies to support an agency request for forfeiture. If a sufficient amount of contraband drugs are seized and/or if the owner of the vehicle is a substantial drug violator, this may warrant “adoption.” If circumstances supporting “adoption” are present, the appropriate federal agency will be notified immediately, advised of the facts surrounding the seizure, and informed of such vehicles. Such notification will be coordinated through the Staff Judge Advocate (SJA) by S2/AFOSI.

6-5.b.(5)(Added - FEW) Unless it is determined the vehicle should be released as provided in paragraph 6-5.b.(1)(Added - FEW) above, notice of impoundment will be mailed to the registered owner(s) of the vehicle and any known lien holder having security interest in the vehicle.

CATHERINE V. BARRINGTON, Colonel, USAF
Commander, 90th Missile Wing

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References
AFI 31-218 (I), *Motor Vehicle Traffic Supervision*, 22 May 2006
AFI 91-207, *The US Air Force Traffic Safety Program,* 12 September 13 AFMAN 33-363, *Management of Records*, 1 March 2008

Prescribed Forms
None

Adopted Forms
AF Form 1315, *Accident Report*
DD Form 1408, *Armed Forces Traffic Ticket*
AF Form 847, *Recommendation for Change of Publication*
PS Form 3811, *Domestic Return Receipt*

Abbreviations and Acronyms
ADAPT---Alcohol and Drug Abuse Prevention and Treatment
AFRIMS---Air Force Records Information Management System
AFJIS---Air Force Justice Information System
ANG---Air National Guard
ANSI---American National Standards Institute
BDOC---Base Defense Operations Center
BTSEECG---Base Traffic Safety Engineering and Coordination Group
CLEOC---Consolidate Law Enforcement Operations Center
CPSC---Consumer Product Safety Commission
DUI---Driving Under the Influence
DUS---Driving Under Suspension
FMVSS--- Federal Motor Vehicle Safety Standards
GORMV---Government Owned Recreational Motor Vehicles
JB CHS---Joint Base Charleston **IDP---**Integrated Defense Plan
LOD---Line Duty
NADAP---Navy Drug and Alcohol Program
OGMVC---Other Government Motor Vehicle Conveyances
OPR---Office of Primary Responsibility
RDS---Records Distribution Schedule
SFMIS---Security Forces Management Information System

Terms
None